

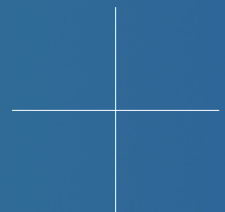


03

CHAPTER III

Comprehensively Strengthened IP Protection

- 01 Promotion and Implementation of the
*Opinions on Strengthening the Protection
of Intellectual Property Rights*
- 02 Construction of IP Protection System
- 03 Professional Guidance on IP Administrative
Protection
- 04 Social Satisfaction Survey on IP Protection
- 05 GI Protection
- 06 Strengthened Protection of Official Signs
and Special Signs
- 07 Practical Cooperation on GIs



01 Promotion and Implementation of the *Opinions on Strengthening the Protection of Intellectual Property Rights*

The 2024 central assessments on quality, food safety and IP protection were conducted at Party committees and governments of 31 provinces (autonomous regions and municipalities) by the State Administration for

Market Regulation(SAMR), the CNIPA, and other relevant departments. The second batch of 15 key cities (regions) was selected for national IP protection demonstration zone construction.

02 Construction of IP Protection System

Implementation plan for the IP protection system construction project was formulated. CNIPA, jointly with 8 departments such as the Publicity Department of the Communist Party of China, issued the *Implementing Plan for the IP Protection System Construction Project* and laid out 143 construction tasks in 7 aspects.

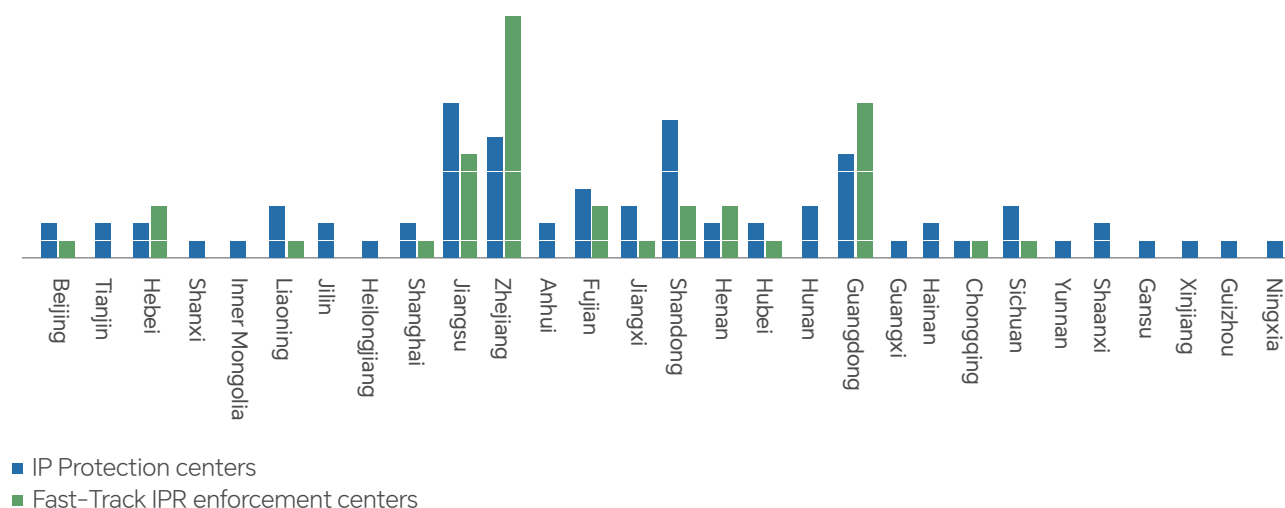
The development of a fast-track and coordinated IP protection mechanism is promoted. In 2024, the establishment of 6 protection centers (including one in Chongqing) and 7 fast-track IPR enforcement centers (including one in Pingxiang) was approved. As of the end of 2024, 76 national IP protection centers and 48 fast-track IPR enforcement centers were planned and established in 29 provinces (autonomous regions and municipalities) nationwide.

The performance evaluation on the fast-track and coordinated IP protection in 2023 was completed. The third batch of pilot programs on expedited processing of IP disputes was launched and 25 pilot areas were selected after evaluation. The *Progress Report on IPR Enforcement and Legal Assistance 2023* was released.

In 2024, the protection centers and fast-track IPR enforcement centers that have been in operation nationwide handled 154,000 IP protection and IPR enforcement cases in total, with an average processing cycle of less than two weeks.

Distribution of IP Protection Centers and Fast-Track IPR Enforcement Centers

(Data as of the end of 2024, with each square representing 1 center)



Further progress was made in IP dispute mediation. As of the end of 2024, there were 2,230 mediation organizations under the guidance and management of the national IP system. In 2024, nearly 140,000 IP dispute mediation cases were accepted and 157,000 private enterprises were served through mediation. As of the end of 2024, a total of 854 IP dispute mediation organizations and 6,217 mediators joined the mediation platforms of the People's Courts. In 2024, 111,000 IP dispute mediation cases were accepted via the mediation platforms of the People's Courts.

Typical practices and cases for multi-modal mediation of IP disputes in 2023 were selected by CNIPA jointly with the Supreme People's Court and the *Progress Report on the National IP Dispute Mediation in 2023* was issued. On-Site exchange activities were held on typical practices and cases for multi-modal mediation of IP disputes. The Measures for the *Mediation of Disputes over the Implementation of Patent Opening Licensing (Trial Implementation)* was issued.

The construction of the credit system in the IP field was promoted. The *Notice on Strengthening Credit Regulation in the Intellectual Property Field* was issued.

03 Professional Guidance on IP Administrative Protection

The research and formulation of normative documents were stepped up. The normative documents such as the *Measures for Administrative Adjudication and Mediation of Patent Disputes*, the *Provisions on Evidence Standards for Trademark Administrative Enforcement*, and the *Measures for Calculating Illegal Business Revenue in Trademark Infringement Cases* were formulated to unify law enforcement standards and enhance the transparency and predictability of the basis for

administrative penalties.

The Administrative adjudication for the early resolution mechanism of patent infringement disputes and pharmaceutical patent disputes was conducted on an ongoing basis. The pilot program on standardizing administrative adjudication of patent infringement disputes was deepened, and guidance was provided for the related

local departments to formulate supporting measures for implementing the *Opinions on Enhancing Administrative Adjudication of Patent Infringement Disputes in the New Era*. The administrative adjudication for the early resolution mechanism of major patent infringement disputes and pharmaceutical patent disputes was carried out in accordance with the related laws and regulations.

Professional guidance on trademark and patent administrative enforcement was strengthened. Inter-Departmental coordinated IP protection was strengthened. Symposiums on promoting coordinated IP protection were held by CNIPA jointly with the Supreme People's Court to further improve the linking mechanism between administrative protection and judicial protection. In coordination with the Ministry of Justice, CNIPA issued the *Opinions on Deepening Coordinated Protection and Strengthening the Legal Safeguards for Intellectual Property* to deepen the cooperation between IP administrative departments and

judicial administrative departments. The protection of well-known trademarks was strengthened and the recognition of 2 batches of well-known trademarks was completed. 3 trademarks were recognized as well-known trademarks and guidance was provided to case-filing authorities to expand their protection.

IP administrative protection efficiency was enhanced.

CNIPA formulated and issued the *2024 National Work Plan for Administrative Protection of Intellectual Property Rights*. The selection of typical cases of IP administrative protection in 2023 was completed, and a total of 30 typical cases of IP administrative protection were published. The review of IP administrative protection files of 2023 was organized and carried out. Capacities building in IP administrative law enforcement and administrative adjudication was strengthened, and premium training courses on IP law enforcement guidance were delivered online.

04 Social Satisfaction Survey on IP Protection

CNIPA launched a nationwide social satisfaction survey on IP protection in 31 provinces (autonomous regions and municipalities) in 2024.

The results showed that the national social satisfaction rating on IP protection reached a record-high 82.36 (out of 100) in 2024, an increase of 0.32 over 2023, and an increase of 18.67 over the first survey in 2012.

05 GI Protection

Policies, systems, and criteria for GI protection were improved. CNIPA steadily advanced the establishment of a unified recognition system for GIs and issued the *Implementation Plan for the Unified Recognition System for Geographical Indications* jointly with the State Administration for Market Regulation. The verification of resources for the unified recognition and protection of geographical indications

was carried out, and the transformation of the existing agri-product geographical indications (AGIs) was advanced in an orderly manner. The *Measures on the Protection of Geographical Indication Products* were implemented and strict recognition rules and examination procedures were put in place to protect GI products. CNIPA published and implemented 4 national standards in the generic and product

categories for GI protection and completed the technical review and approval of other 8 national standards in the product category for GI protection.

Administrative protection of GIs was strengthened. CNIPA increased guidance on the protection of GIs in various regions. CNIPA selected and released typical cases for administrative protection of GIs, official signs, and special signs in 2023.

Pilot and demonstration programs for GI protection were developed. The guidance and management of the preparatory work for establishing national GI protection demonstration zones were strengthened, and typical cases of demonstration zone construction were collected. The *Implementation Plan for the Geographical Indication Protection Project* was issued, and the call for applications for the first batch of GI protection projects was carried out with a total of 44 GIs selected.

06 Strengthened Protection of Official Signs and Special Signs

CNIPA provided support to diplomatic events held at home and issued announcements for the protection of 4 official signs of the Ministry of Foreign Affairs of the People's Republic of China, including official signs for the Forum on China-Africa Cooperation, China-Arab States Cooperation Forum, China-CELAC Forum, and China-CEEC Cooperation. In fulfillment of international agreement obligations, CNIPA included 115 signs notified by WIPO in the protection of official signs and organized 3 objections to be filed with WIPO. In line with the hosting of major events, a total of 44 special signs were approved and registered for the 14th National Winter Games,

the 9th Asian Winter Games 2025, the 12th World Games, and the 15th National Games of the People's Republic of China, and 4 special signs were granted an extension such as the logo of the Vocational Skills Competition of the People's Republic of China. To facilitate the successful hosting of the Harbin Asian Winter Games (AWG), CNIPA approved the Intellectual Property Protection Center in Heilongjiang to set up a window for recording licensing contracts of special signs for the Harbin AWG to achieve “fast-track protection” for the users of special signs.

07 Practical Cooperation on GIs

CNIPA continued to promote the implementation of the China-EU Geographical Indications Agreement, participated in the Third Session of the Joint Committee on the China-EU Geographical Indications Agreement, organized the revision of the technical specifications for Chinese products in the second batch of the EU list, completed the handling of

objections, and put forward suggestions for revising the EU technical specifications. The China-France Joint Statement was implemented, and an announcement was issued to provide GI product protection for the names of two Burgundy-affiliated producing areas, including Mâcon and Gevrey-Chambertin.